

The Madurai City Municipal Corporation Service Rules, 1975

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State of Tamilnadu- Act

The Madurai City Municipal Corporation Service Rules, 1975

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The Madurai City Municipal Corporation Service Rules, 1975

Rule THE-MADURAI-CITY-MUNICIPAL-CORPORATION-SERVICE-RULES-1975 of 1975

Published on 27 August 1975

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The Madurai City Municipal Corporation Service Rules, 1975

Published vide Notification G.O.P. No. 1460, Rural Development and Local Administration, dated 27th August 1975

No. SR A-423(B) 75. - In exercise of the powers conferred by sub-section (1) of section 431 read with sub-section (1) of section 106 of the Madurai City Municipal Corporation Act, 1971 (Tamil Nadu Act 15 of 1971

), the Governor of Tamil Nadu hereby makes the following rules:-

Part I ? Preliminary

1.

Short title and commencement.

- These rules may be called the Madurai City Municipal Corporation Service Rules, 1975.

2.

Definitions.

- In these rules unless there is anything repugnant in the subject or context, -

(1)

"Act" means the Madurai City Municipal Corporation Act, 1971 (Tamil Nadu Act 15 of 1971

);

(2)

Appointed to the service. - A person is said to be "appointed to the service" when in accordance with these rules, or in accordance with the rules applicable at the time, as the case may be, the discharges for the first time, the duties of a post borne on the cadre of the service or commences the probation, instruction or training, if any, prescribed for members thereof;

(3)

Approved candidates. - A person is said to be an "approved candidate" for a corporation service if his name appears in the authoritative list of candidates selected for appointment to any class or category of the service;

(4)

Approved probationer. - "Approved probationer" in a class or category of the service means a member of that class or category of the service who has satisfactorily completed his probation and awaits appointment as a full member of such class or category of the service;

(5)

Backward classes - "Backward classes" means the communities classified as such in the General Rules for Tamil Nadu State and Subordinate Services;

(6)

"Commissioner" means the Commissioner Corporation of Madurai;

(7)

"Committee" means the Appointment Committee or the Appeal Committee according to the context;

(8)

Corporation - "Corporation" means the Municipal Corporation of Madurai;

(9)

"Council" means the Council of the Municipal Corporation of Madurai;

(10)

Discharge of a member of the service - "Discharge of a member of the service" means dispensing with the service for want of vacancy;

(11)

Duty. - A person is said to be "on duty" as a member of the service-

(a)

When he is performing the duties of a post borne on the cadre of the service or is undergoing the probation, instruction or training, if any, prescribed for the service;

(b)

when he is on joining time; or

(c)

When he is absent from duty during vacation or on authorised holidays or casual leave taken in accordance with the instructions regulating such leave having been on duty immediately before and immediately after such absence;

(12)

Full Member. - "Full Member" of the service means a member of the service who has been appointed substantively to a permanent post borne on the cadre thereof;

(13)

General rules. - "General rules" shall mean the rules in Part-II of these rules;

(14)

Member of the service. - "Member of the service" means a person who has been appointed to the service and who has not retired or resigned or has been removed or dismissed, or has been discharged otherwise than for want of vacancy. He may be a probationer, an approved probationer or a full member of that service;

(15)

Military duty. - "Military duty" means-

(i)

duty of any kind (including a course of training) involving subjection to Naval, Military or Air Force Law; or

(ii)

duty (including a course of training) with a liability to serve overseas in any operational area in Naval, Military or Air Force unit or formation or under Military, Munitions or stores authorities or in factories; or

(iii)

whole time duty in-

(a)

the Civil Pioneer Force, the Madras Civil Labour Units or the Madras Labour Units for Ceylon, or

(b)

The A.R.P. or any other Civil Defence organisation specified by the Central Government; or

(c)

any post created for the efficient prosecution of the war of 1939-46 or associated with the training of war technicians, if duty in such post is declared by the Central Government to be military duty;

Explanation. - No duty shall be treated as Military duty unless either of the following conditions is satisfied-

(i)

It must have been rendered within the period commencing on the 3rd September 1939 and ending with the 21st November 1946, provided that if it commenced on or after the 2nd April 1946, it shall not be reckoned as Military duty or;

(ii)

It must have commenced on any date on or after the 26th October 1962;

(16)

Probationer. - "Probationer" in the service means a member of the service who has not completed his probation;

(17)

Promotion. - "Promotion" means the appointment of a member of any category of the service or a class of service to a higher category or class of the service;

(18)

Recruited direct. - A person is said to be recruited direct when he is not already a member of the Corporation service, which the direct recruitment is made;

(19)

Reversion. - "Reversion" shall mean the reversion of a member of a class or category of the service to a lower class or category of the service for want of vacancy;

(20)

Scheduled Castes. - "Scheduled Castes" means the communities classified as such in the General Rules for the Tamil Nadu State and Subordinate Services.

Explanation. - No person who professes a religion different from Hinduism shall be deemed to be member of a Scheduled Caste;

(21)

Scheduled Tribes. - "Scheduled Tribes" means the communities classified as such in the General Rules for the Tamil Nadu State and Subordinate Services;

(22)

Service. - "Service" shall mean any one of the Corporation Services in Parts III and IV of these rules;

(23)

Special Rules. - "Special Rules" shall mean the rules in Parts II and IV applicable to each service;

(24)

Transfer. - "Transfer" shall mean the posting of a person holding one post, to another identical post under the Corporation;

(25)

War service. - "War service" means-

(1)

- (a) service of any kind in a unit or formation liable for service overseas or in any operational area or in the Indian National Army (INA);
 - (b) service in India under Military, Munitions or Stores authorities or in factories with a liability to serve overseas or in any operational area;
 - (c) all other service involving subjection to the Naval, Military or Air Force law;
 - (d) a period of training with a Military Unit or formation involving liability to serve overseas or in any operational area;
 - (e) valuable service rendered to the fighting forces in other ways, e.g. by way of recruiting;
 - (f) service in A.R.P. or any other Civil Defence Organisation specified in this behalf by the Central or State Government; and
 - (g) any service connected with the prosecution of the war which a person was required to undertake by a competent authority under the provision of any law for the time being in force;
- (2) service in any of the following:-
- (i) National War Front Organisation;
 - (ii) Camouflage organisation;
 - (iii) Special organisation for the production of war supplies "Military Duty" through small scale industries;
 - (iv) Any post associated with the training of war technicians if duty in such post is declared by the Central Government to be "Military Duty";
 - (v) Post of Special Constable on constant patrol duty;
 - (vi) Survey of India if the service was temporary and involved liability for service overseas.

Part II ? General Rules

1. Scope of the General Rules. - The rules in this Part shall apply to Classes I to IV of the Corporation establishment specified in section 104 of the Act and to the holders of every post whether temporary or permanent any class or category of the service.

Explanation. - If any doubt arises as to whether these rules shall apply to any person or not, in a particular class or category of the service, the matter shall be referred to the Government whose decision shall be final.

2. Relation to the special rules. - If any provision in the general rules contained in this Part is repugnant to a provision in the special rules applicable to the service contained in Parts III and IV of the latter shall, in respect of the service prevail over the provisions in the general rules in this Part.

3.

List of approved candidates. - All first appointments to the service shall be made by the appointing authority from a list of approved candidates. Such list except in respect of Classes I and II shall be prepared by the appointing authority in the manner laid down in rule 4. Where the candidates in such list are arranged in the order of preference, appointments to the service shall be made in such order.

4.

Procedure of recruitment. - Vacancies for the posts in [Classes I to IV]

[Substituted by C.O. Ms. No. 897 RD & LA, dated 22-6-1983.]

in the service shall be notified to the local Employment Exchange and shall be filled up only from among the candidates

sponsored by the Employment Exchange. Only, in case where the Employment Exchange intimates non-availability of suitable qualified candidates, selection of candidates may be made by advertisement. The Commissioner shall prepare a tabulated statement giving particulars of the candidates in Form 4 in the Appendix and place the same before the Appointment Committee for consideration. The Appointment Committee will select candidates from amongst the candidates included in the tabulated statement after personal interview, if necessary. Every candidate selected for appointment shall possess the qualification prescribed for the respective posts and shall be physically found suitable on being sent for medical examination:

Provided that the Commissioner may as provided in rule 8, appoint temporarily such persons as may, in his opinion, be required for any purpose connected with the running of the administration, if candidates from the list of approved candidates are not readily available. The Commissioner shall report to the Appointment Committee such appointments made, for its ratification.

5.

Right of probationers and approved probationers to re-appointment. - A vacancy in any class or category of the service shall not be filled by the appointment of a person who has not yet commenced his probation in such class or category of the service when an approved probationer or probationer therein is available for such appointment.

6.

Discharge or reversion and re-appointment of probationers and approved probationers. - (a) Probationers and approved probationers shall be reverted or discharged for want of vacancy in the following order:-

(i)

The probationers in the order of juniority; and

(ii)

The approved probationers in the order of juniority. The order of reversion or discharge may be departed from in cases where such order will involve exceptional administrative inconvenience.

7.

Members absent from duty. - The absence of a member of the service from duty whether on leave or foreign service or on deputation or for any other reasons and whether his lien in post borne on the cadre of the service is suspended or not, shall not, if he is otherwise fit, render him ineligible in his turn-

(a)

for re-appointment to a substantive or officiating vacancy in the class, category, grade or post in which he may be probationer or an approved probationer;

(b)

for promotion from a lower to a higher category in the service, as the case may be, in the same manner as if he had not been absent. He shall be entitled to all the privileges in respect of appointment, seniority, probation and appointment as full member which he would have enjoyed, but for his absence subject to his completing satisfactorily the period of probation on his return.

8.

Temporary appointments and promotions. - (a) The appointing authority may appoint any person temporarily for a period not exceeding six months or promote any person temporarily for a period not exceeding three months in order to fill up a vacancy which has arisen in any category or class of the service, immediately in the public interest and where there will be undue delay in making an appointment in accordance with the rules.

(b)

Where it is necessary to promote an officer against whom an enquiry into allegations of corruption or misconduct is pending, the appointing authority may promote him temporarily pending enquiry into the charges against him.

(c)

A person appointed or promoted temporarily under sub-rule (a) or sub-rule (b) shall not be regarded as a probationer in such class or category of the service. The services of such a person shall be liable to be terminated by the appointing authority at any time without notice and without reasons being assigned.

(d)

A person appointed or promoted temporarily under sub-rule (a) or sub-rule (b) shall be paid the minimum of time scale of pay or his substantive pay, as the case may be, applicable to the post, whichever is higher.

9.

Appointment on contract. - Notwithstanding anything contained in these rules, wherever it is necessary in the interest of the administration or in the public interest to appoint a person to any class or category of the service otherwise than in accordance with the rules, the Commissioner may, with the prior approval of the Government, appoint any person on contract for a period not exceeding three years at a time. A person who is so appointed shall not be regarded as a member of the service to which he is appointed.

10.

Qualifications. - The minimum general educational qualification wherever referred to in the special rules shall mean the qualification prescribed in the Schedule to this Part. Any person who has appeared for the examination mentioned in rule 2 (i) (ii) of the General Rules for the State and Subordinate service in Volume 1 of the Tamil Nadu Services Manual and has obtained the minimum percentage of marks specified therein shall be deemed to possess the minimum general educational qualification:

Provided that a candidate who has rendered war service shall be deemed to possess the minimum general educational qualification if he has appeared for Secondary School Leaving Certificate Examination of the State and has been declared eligible for admission to collegiate course of studies.

11.

Age limit. - The age limit prescribed in the special rules shall not apply to the appointment of a candidate belonging to any of the Scheduled Caste, Scheduled Tribes or Backward Classes to a post included in the service for which the special rules prescribe a qualification lower than the B. A or B.Sc., degree of any University if the candidate possesses a general educational qualification higher than the minimum general educational qualification.

A candidate who has rendered war service is eligible to deduct from his age the period of his war service for the purpose of computing his age for appointment.

12.

Special qualifications to be acquired or special tests to be passed. - No person shall be eligible for appointment to any class or category of the service unless he-

(a)

possesses such special qualifications and has passed such special tests, as may be prescribed in that behalf in the special rules, or

(b)

possesses such other qualification as may be considered to be equivalent to the said special qualifications or special tests by the Government.

13.

Appointment of women. - Women alone shall be appointed to posts in any institution or establishment specially provided for them:

Provided that men may be appointed if suitable or qualified women are not available for such appointment.

14.

Reservation of appointments. - Where the special rules lay down that the rule of reservation of appointments shall apply to any class or category of the service, the order of such reservation shall be the same as in rules 22 of the General Rules for the Tamil Nadu State and Subordinate Services, as amended, from time to time.

15.

Date of commencement of probation of persons appointed or promoted temporarily. - If a person who is appointed or promoted temporarily under rule 8 of these rules is subsequently appointed thereto in accordance with the rules, it shall be open to the appointing authority to allow such person to commence his probation from the date of such appointment or promotion or from an earlier date, such date not being earlier to the date of his first temporary appointment or promotion under rule 8, as the appointing authority may, in his discretion, decide:

Provided that this rule shall not be construed as authorising the appointment or promotion on probation of a person from a date on which he did not possess the qualifications prescribed for such appointment or promotion.

16.

Duty in higher post to count for probation in lower posts. - A probationer in any class or category of the service shall be eligible to count towards his probation, if any, his duty performed otherwise than in a substantive capacity on regular appointment to a higher class or category of the service.

Nothing contained in this rule shall be construed as authorising the promotion of a probationer in contravention of rules.

17.

Duty on temporary promotion to count for probation in lower post. - A probationer in any class or category of the service who is promoted temporarily under the provisions of rule 8 of these rules to a higher class or category of the service shall be entitled to count towards his probation, if any in the former class or category, the period of duty performed by him in the latter class or category, as the case may be, during which he would have held the post in the former class or category, but for his temporary appointment on promotion.

18.

Completion of probation and drawal of arrears of increments. - Any delay in passing orders of completion of probation shall not monetarily affect the approved probationer and arrears of increment shall be allowed from the date of completion of probation as a matter of course, subject to the following conditions namely:-

(1)

that the probation would have been declared to have been satisfactorily completed from the date ordered, even if the question of declaration of probation had been taken up earlier;

(2)

that the declaration of satisfactory completion of probation was delayed by factors which would not, in any case, change the date of such completion;

(3)

that the person whose probation is declared to have been satisfactorily completed was qualified as on the date ordered;

(4)

that declaration of satisfactory completion of probation was not the result of any relaxation of rules.

19.

Appointing authority to consider suitability for full membership. - As soon as a probationer in any class or category of the service has completed his period of probation prescribed in the rules or the extended period of probation referred to in rule 20, as the case may be, the appointing authority shall consider his suitability for full membership to the class or category, as the case may be, provided he has passed the tests, if any which he should pass during the period of his probation.

If the appointing authority is satisfied that the probationer is suitable for full membership, he shall pass an order declaring him to be an approved probationer.

20.

Extension of probation. - If the appointing authority is of the opinion that the probationer should continue to be on probation in order to enable him to decide upon his suitability for full membership or if the probationer has not passed the test or tests, if any, which the probationer should pass within the period of probation, he should be given time to enable him to pass the tests, the appointing authority may extend his period of probation for a period of not exceeding one year.

21.

Completion of termination of probation. - If on the conclusion of the period of probation or the extended period of probation, as the case may be, the appointing authority is satisfied that the probationer is not suitable for full membership, he shall pass an order terminating his probation after giving the probationer reasonable opportunity for showing cause against the proposed termination of probation.

If on the conclusion of the period of probation, the probationer has not passed the tests, if any, prescribed by the rules, the appointing authority shall terminate his probation unless the probation is extended under rule 20. If the probationer does not pass the tests within the extended period of probation, appointing authority shall terminate his probation.

22.

Automatic completion of probation. - A probationer in any class or category of the service shall be deemed to have completed his probation automatically, unless within a period of six months calculated from the date on which he completed his period of probation or the extended period of probation, as the case may be,-

(i)

a communication asking him to show cause why his probation should not be terminated is served on him; or

(ii)

disciplinary proceedings are initiated against him for corruption or other serious misconduct and he is specifically informed in writing that the question of considering the suitability for full membership will be taken to only after the

conclusion of the disciplinary proceedings.

Nothing in this rule shall be construed as entitling a probationer to automatic completion of probation if he has not passed the tests which under the special he should pass within the period of his probation.

23.

Appeal against termination of probation. - A probationer whose probation has been terminated for reasons other than failure to pass the prescribed test shall be entitled to appeal to the authority to which and within the period of limitation within which an appeal would be preferred against the orders of termination passed by the appointing authority against a member of the service.

24.

Appointment of full members. - The senior most approved probationer in a class or category, as the case may be, of a service shall, at the earliest possible opportunity, be appointed as a full member in a substantive vacancy existing in such class or category. If the substantive vacancy exists from a date prior to the date of completion of probation, he shall be appointed retrospectively as a full member from such date provided that no person shall be appointed from a date which is earlier to the date on which he commenced probation.

25.

Seniority. - The seniority of a person appointed to any class or category of the service shall be determined with reference to his rank in the list of approved candidates or promotion panel, as the case may be.

26.

Promotion. - Every promotion to a class or category of the service to which promotion shall be made from a promotion panel drawn up by the appointing authority in manner laid down in rule 27.

27.

Promotion panel. - Selection of candidates for higher posts shall be regulated as follows:-

(a)

The Commissioner shall assess the number of vacancies that would occur by superannuation of existing incumbents, creation of new or additional posts within a period of six months or one year, as he considers necessary, under each class or category of the service.

(b)

The Commissioner shall thereafter cause a panel of candidates prepared in the order of preference based on their qualifications, merit and ability seniority being taken into account only if the qualification, merit and ability are approximately equal.

(c)

The number or persons to be included in the panel will be equal to twice the number of vacancies assessed or such number as the Commissioner may decide.

(d)

Separate panel shall be prepared to each category of the service for which the qualification and scale of pay fixed are different.

(e)

The Commissioner shall arrange the names of all eligible candidates in the order of their seniority in the class from which promotion has to be made and also record his own views in the fitness or otherwise of the candidates. He shall, thereafter, place the list before the appointing authority which shall scrutinise them and draw the promotion panel for each class.

(f)

Any modification to the list placed by the Commissioner shall be justified by the appointing authority and the reasons therefor shall be justified by alone, the order of seniority may be departed from the following cases, namely:-

(i)

Where promotion is given on grounds of conspicuous merit and ability,

(ii)

Where promotion has been withheld as a measure of penalty.

30.

Representation against supersession of the claim for promotion. - Every member of the service whose claim for promotion is passed over shall have the right to make a representation for redressal of his grievance. Such

representation shall be made to the authority to which an appeal would lie against an order of dismissal passed on a full member of the class or category of the service, as the case may be and within two months from the date on which the cause of making the representation accrued. The aforesaid authority shall examine every such representation on its merits and pass suitable order.

31.

Revision of orders of promotion. - Nothing contained in rule 30 shall be construed as preventing the authority mentioned in that rule from suo motu examining an order promoting a member of the service and revising it in any manner as it considers equitable.

32.

Posting and transfer. - (a) A member in a class or a category of service may be required to serve in any post borne on the cadre of such class or category of service.

(b)

All transfers and postings shall be made by the Commissioner.

33.

Consequences of resignation. - A member of the service shall, if he resigns his appointment, forfeit not only the service rendered by him in the particular post held by him at the time of resignation, but all his previous service under the Corporation.

The re-appointment of such person to any post in the service shall be treated in the same way as first appointment of the service by direct recruitment and the rules governing such appointment shall apply and on such re-appointment, he shall not be entitled to count any portion of his previous service for any benefit or concession admissible under any rule or order.

34.

Reduction of full member. - If full member of any class or category of the service is substantively reduced to a lower class or category therein, he shall be deemed to be a full member of the latter and the permanent cadre thereof shall, if there is no vacancy in which he could be absorbed, be deemed to be increased by one:

Provided that against every such addition, an officiating or temporary vacancy, if any, in such lower class or category shall be kept unfilled and such addition shall be absorbed in the first permanent vacancy that arises subsequently in such lower class or category, as the case may be.

35.

Appointment in place of members dismissed, removed, compulsorily retired or reduced. - Where a person has been dismissed, removed, compulsorily retired or substantively reduced from any class or category, no vacancy caused thereby or arising subsequently in such class or category shall be substantively filled to the prejudice of such person until the expiry of a period of one year from the date of such dismissal, removal, compulsory retirement or reduction or until the appeal, if any, preferred by him against such dismissal removal, compulsory retirement or reduction is decided, whichever is later.

36.

Re-employment of pensioners. - Notwithstanding anything to the contrary in these rules or the special rules, the Government shall have the power to re-employ in any class or category of the service any person who was retired from the service. The re-employment of such person shall not be regarded as the first appointment to the service, nor it shall confer on him the status of a member of the service in which he is re-employed.

37.

Relinquishment of rights by members. - Any person may, in writing, relinquish any right or privilege to which he may be entitled under these rules or the special rules, if in the opinion of the appointing authority, such relinquishment is not opposed to public interest; and nothing contained in these rules or the special rules shall be deemed to require the recognition of any right or privilege to the extent to which it has been so relinquished.

38.

Power to relax rules. - Notwithstanding anything contained in these rules or the special rules, the Government shall have the power to deal with the case of any person or class of persons serving in the service or any candidate or class of candidates for appointment to the service in such manner as may appear to them to be just and equitable:

Provided that where any such rule is applicable to the case of any person or class of persons, the case shall not be dealt within any manner less favourable to him other than that provided by that rule.

39.

Alteration of Date of Birth. - (a) The date of birth of a member of the service shall be the date found on record in the S.S.L.C. or Matriculation Register or any school certificate which he produces at the time of his appointment to the service. If a member of the service claims subsequently that his date of birth is different from that entered in the S.S.L.C. or Matriculation Register or school certificate he shall make an application to the Commissioner explaining how the mistake occurred and also produce the evidence on which he relies:

(b)

An application for alteration of the date of birth should not normally be accepted by the Commissioner if it is made five years after the member had entered the service unless the applicant furnished adequate reasons for not making his application earlier.

(c)

The Commissioner shall send the relevant records to the Collector of the District concerned, who shall have the matter enquired into by an officer of the Revenue Department not lower in rank than Revenue Divisional Officer. The Collector shall forward with his remarks, if any, of the report of the Revenue Divisional Officer concerned and all the relevant records to the Government and thereupon the Government shall pass suitable orders thereon.

(d)

In considering the question of permitting an alteration in the date of birth as entered in the official records even when such entry is provided to have been due to a bonafide mistake, the Government shall take into consideration the circumstances whether the applicant would normally be eligible for appointment to the post at the time of entry into the service, had his age been correctly stated and what would have been its effect on his service and the Government may permit the alteration subject to such conditions as they may deem fit to impose.

(e)

The procedure laid down in sub-rules (a) to (d) shall be followed also in case where alteration of date of birth is proposed suo motu by the Commissioner on the basis of medical opinion, in the absence of any other authoritative records.

40.

Furnishing of security deposit in a particular class or category of the service. - It shall be open to the council to direct, with the prior approval of the Government and by means of a general or special order that a person before he is appointed to a particular class or category of the service shall furnish security for a specified amount. The amount of security and the manner of taking it shall be given in the order. No person shall be appointed to any class or category of the service unless he furnishes security in accordance with the said order.

41.

Pay and allowances. - The pay scale and allowances of the Corporation establishment in Classes I to IV shall be fixed by the Government, from time to time, in accordance with section 106 of the Act.

The provisions of the Tamil Nadu Travelling Allowance Rules issued by the Government, from time to time, shall apply to the Corporation establishment for the purpose of claiming travelling allowances and daily allowances.

42.

Holidays. - (a) The offices and institution under the control of the Corporation shall be permitted only such public and special holidays as may be sanctioned by the Government, from time to time, in respect of Government Offices and institutions:

Provided that the grant of holidays to educational institutions under the control of the Corporation shall be regulated in accordance with the Tamil Nadu Education Rules.

(b)

No holiday other than those sanctioned to Government offices and institutions shall be granted to offices and institutions, under the control of the Corporation without the previous sanction of the Government. Provided, however, the Commissioner is permitted to order closure of the Corporation offices for a day or part of a day as a mark of respect whenever any officer of the Corporation of the status of a head of Department passes away.

43.

In matters in respect of which no provision has been made in the rules, every member of the service shall, as nearly as possible, be governed by the provisions applicable to Government servants of similar status and standing.

44.

[

[Added by GO. MS. No. 1635, RD & LA, dated 31.10.1983]

(a)(i) Notwithstanding anything contained in these rules, the appropriate authority shall, if it is of the opinion that it is in the public interest so to do, have the absolute right to retire any member of the service by giving him notice of not less than three months in writing or three months pay and allowances in lieu of such notice at any time after who has attained fifty five years in the case of basic service, as the case maybe, or after who has completed thirty years of qualifying service. Any member for the service who has attained fifty years of age or who has completed twenty-five years of qualifying service, may likewise retire from service by giving notice of not less than three months in writing, to the appropriate authority.

Explanation I. - For the purpose of the clause, appropriate authority means the authority which has the power to make substantive appointments to the post or service from which the member of the service is required to retire or wants to retire.

Explanation II. - In computing the notice period of three months, the date of service of the notice shall be included.

Explanation III. - When a member of the service under suspension or against whom disciplinary action is pending, seeks to retire voluntarily under this clause, the specific permission of the appropriate authority for such voluntary retirement is necessary. The appropriate authority may withhold the permission sought by the member of service.

Explanation IV. - The powers conferred on the appropriate authority under the clause may also be exercised by any higher authority.

(ii)

The member of service may also withdraw the notice of voluntary retirement subsequently, with the approval of the appropriate authority.

Provided that his request for such withdrawal shall be made before expiry of the period of notice,

(b)

(i)

A member of the service who has completed qualifying service of not less than twenty years, may retire from service by giving notice of not less than three months in writing to the appropriate authority. Before giving such notice, he may satisfy himself by means of a reference to the appointing authority that he has completed twenty years of qualifying service for pension.

Explanation I. - For the purpose of this clause, the period of notice shall commence from the date of its receipt by the appointing authority.

Explanation II. - Appointing authority shall include the immediate official superior to the members of the service and the period of three months notice, shall commence from the date of receipt of notice by the said immediate superior, in cases where a member of the service has to address the appointing authority through proper channel.

Explanation III. - The three months notice referred to in sub-rules (a) and (b) may be given before the member of the service attains the age and the qualifying service specified in the said sub-rules provided that the retirement takes place after he has attained the specified age or has completed the specified qualifying service, as the case may be

(ii)

The member of the service desiring to retire under clause (i) shall be given weightage up to five years in addition to the qualifying service rendered by him subject to the conditions that the total qualifying service after adding the weightage shall not exceed the qualifying service that he would have had if he had voluntarily retired under sub-rule (a). The weightage given under this clause shall be an addition to the qualifying service for the purpose of calculating pension and gratuity only and it shall not entitle the member of the service retiring voluntarily to any notional fixation of pay for the said purpose. The pension and gratuity shall be based on the average emoluments on the date of retirement.

Illustrations. - A member of the service seeking voluntary retirement under this scheme on-

(a)

attaining the age of forty-five years and completing a qualifying service of twenty-one years shall have a weightage of five years;

(b)

attaining the age of forty-eight years and completing a qualifying service of twenty-one years shall have a weightage of two years;

(c)

attaining the age of forty-five years and completing a qualifying service of twenty-four years shall have a weightage of one year.

(iii)

The notice of voluntary retirement issued by a member of the service under clause (i) shall be accepted by the appointing authority if the date of retirement on the expiry of such notice is earlier than the date on which the member of the service concerned could have retired voluntarily under sub rule (b) except where-

(i)

disciplinary proceedings are contemplated or pending against the member of the service concerned, for the imposition of a major penalty, or

(ii)

prosecution is contemplated or pending in a Court of law against the member of the service concerned,

(iv)

The member of the service shall be deemed to have been retired from service at the end of the period of notice issued under clause (i) unless the appointing authority or an authority to the appointing authority issues an order to the contrary before the expiry of the period of notice,

(v)

The member of the service may also withdraw the notice of voluntary retirement subsequently, with the approval of the appointing authority.]

Appendix

Form 4

Appointment Committee - Docket Form

1. Name of post.

2. General qualification.

3. Technical qualification.

4. Scale of pay and allowances.

5. No. of vacancies existing.

6. No. of vacancies anticipated in the year.

Sl. No.

Name of Applicant

Nationality and caste

Qualification General and Technical

Decision of Committee

1

2

3

4

5

Schedule

Minimum General Educational Qualification (Referred to in Rule 10)

A candidate must-

(a)

either have obtained a completed Secondary School Leaving Certificate issued under the authority of the Government of Tamil Nadu; and

1. If such certificate was obtained in pursuance of the revised Secondary School Leaving Certificate Scheme introduced by G.O.Ms. No. 1636, Law (Education), dated the, 3rd August 1929, the certificate must show that the candidate has obtained at the Public Examination not less than the percentage of marks specified at the Public Examination not less than the percentage of marks specified below in the subjects under Group 'A' and not less than 35 per cent in one of the subjects in Group 'C'.

Group A

Percent

English

40

A Language

40

Elementary Maths

35

Elementary Science

30

Outlines of History of

30

England and India & Geography :

Provided that a candidate belonging to the Scheduled Caste or Scheduled Tribes shall, if he has obtained not less than 35% in English and in the language in Group 'A' and not less than the percentage of marks specified above in the other subjects under that Group and 35% in one of the subjects under Group 'C' be eligible for appointment to any subordinate service.

2. If such certificate was obtained in pursuance of the Secondary School Leaving Certificate Scheme which was in operation before the revised scheme referred to in sub-clause (i), the certificate must show that the candidate has obtained at the Public Examination not less than 35% of the marks in each of the subjects in Group 'A' and each of two subject in Group 'C'.

3. If such certificate was obtained in pursuance of the scheme for the reorganisation of Secondary Education introduced by G.O. No. 1394, Education dated the 29th May 1948, the certificate must show that the candidate has obtained at the Public Examination not less than the percentage of marks specified in Column (2) of the table below against the subjects referred to in Column (1) thereof.

1. General Course:

1

2

1. First language Part I and II

40 (80 marks of 200)

2. English

40

3. Mathematics (General or Composite)

4. Social studies.

35 each in any two of the subjects and 30 in the third.

5. General Science

II. Secretarial Course:

1. First Language Part 1

40

2. English

40

3. Commercial Arithmetic

4. Social studies

5. Drafting precise writing and typewriting

6. Two of the following three items.

35 in any two of the subjects and 30 in the other two subjects.

(i) Commercial Practices

(ii) Shorthand

(iii) Book-keeping

III Pre-Technological Course:

A. Engineering.

1. First Language Part 1

40

2. English

40

3. Mathematics (General or composite)

4. Social studies

5. Science and drawing

6. Applied Science and practical

35 in any one of the subject and 30 in the other three.

B. Agricultural or any other subject:

1. First Language Part 1

40

2. English

40

3. Mathematics (General or composite)

4. Social Studies

5. Agriculture (Theory)

35 in any one of the subject and 30 in the other three.

6. Elementary Science and Practical

C. Textile Technology:

1. First Language Part 1

40

2. English

40

3. Mathematics (General or Composite)

4. Social Studies

35 in any one of the subject and 30 in the other three.

5. Handloom Weaving (Written or Practical)

6. Dyeing and Printing

IV. Written or Practical:

Part I - First Language Part I

40

Part II - English

40

In each of the other 2 subjects under Part II 30 in each

If additional language is taken under this Part, the candidate should obtain a total number of 80 marks in that language and in Part I of the First language put together. If general science or social studies is taken as a subject under this part 35% should be obtained in that subject.

Part III any one subject under this Part

30

V. Teaching Practice Course:-

1. First Language - Part I

30

2. English

40

3. Maths (General or Composite)

4. General Science

35 in any one of the subject and 30 each in other three

5. Social Studies

6. Teaching Practice

Provided that in the case of a candidate

belonging to the Scheduled Castes or Scheduled Tribes, it shall

be sufficient if he has obtained not less than 35% in English

not less than 35% in Part I of the First Language or 70 marks out

of 200 when both Parts I and II of the First language are taken,

as the case may be, and not less than the percentage of marks

specified in the table above in other subjects.

4. If such certificate was obtained in pursuance

of the re-organised scheme for Secondary Education introduced in

1959, the certificate must show that the candidate has obtained

at the public examination, not less than the percentage of marks

specified in Column (2) of the Table below against the subjects

referred to in Column (1) thereof.

(1)

(2)

1 Academic Course-

A. Engineering Course-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. Composite Maths

4. Engineering Paper I

5. Engineering Paper II

35 in any one of the subjects and 30 in each of

the other subjects

6. Engineering Paper III

4

7. Engineering Practicals.

B. Textile Technology Course:-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. General Composite

Maths

4. Science

5. Textile Technology Paper II

35 in any one of the subjects and 30 in each of

the other subjects

6. Textile Technology Paper II

7. Textile Technology Paper III

C. Agricultural Course-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. General Mathematics

4. General Science

5. Agriculture (Theory)

35 in any one of the subjects and 30 in each of the other subjects

6. Agriculture (Practical)

D. Secretarial Course-

1. Language under Part I

40 (80 marks out of 200) 40

2. Language under Part II (English)

40

3. General Maths

4. General Science

5. Typewriting

6. Secretarial Practice

35 in any one of the subjects and 30 in each of the other subjects

7. Book Keeping or Shorthand

8. Civics and Commercial Geography

E. Home Science-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. General Mathematics

4. General Science

5. Social Studies

30 in each of the subjects

6. Home Science (Theory)

7. Home Science (Practical)

F. Drawing and Painting-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. General Mathematics

4. General Science

5. Social Studies

30 in each of the subjects

6. Drawing

7. Painting

G. Music-

1. Language under Part I

40 (80 marks out of 200)

2. Language under Part II (English)

40

3. General Maths

4. General Science

5. Social Studies

35 in any one of the subjects

6. Music (Theory)

7. Music (Practical)

Provided that in the case of a candidate belonging to the Schedule castes or Scheduled Tribes, it shall be sufficient if he has obtained not less than 35% in English, and 35% in language under Part I or 70 marks out of 200 when both Papers I and II of the language under Part I are taken, as the case may be, and not less than the percentage of marks specified in the tables above in the other subjects

Note. - (I) The certificate of pupils who have been excepted from Vernacular, Composition and Translation in Group 'A' will not be considered incomplete because they contain no entry under that subject.

(II)

A pass in a Government Technical Examination will be regarded as equivalent to obtaining 35% of the marks in the corresponding subjects in the Secondary School Leaving Certificate Public Examination for this purpose wherein the later examination the technical subject comprises two subjects in the Government Technical Examination passes in at least the Lower Grade are required on both the subjects in the Government Technical Examination.

(III)

A pass in a part of the Intermediate Examination in Arts and Science or the Pre-University Examination of any University or Institution recognised by the University Grants Commission for the purpose of its grants shall be regarded as equivalent to obtaining the minimum number of marks prescribed for the corresponding subject or subjects in the Secondary School Leaving Certificate public Examination

(IV)

A candidate who appeared for the Secondary School Leaving Certificate Examination under the 1929 Scheme and failed to obtain the minimum marks prescribed for the minimum General educational qualification in sub-clause (1) of clause (2) can appear for the Secondary School Leaving Certificate Examination under the Re-organised Scheme of Secondary Education in the corresponding subjects in the academic course given below and obtain the minimum marks prescribed against each subject in the table below:-

Old Scheme

New Scheme (Academic course)

(1)

(2)

1. Language

1. First Language

2. English

2. English

3. Elementary Maths

3. Maths

4. Elementary Science

4. General Science

5. History and Geography

5. Social subjects

6. Optional subject

6. No corresponding subject

He shall be deemed to possess the minimum general educational qualification if he has obtained the minimum percentage of marks prescribed for the first five subjects in the old scheme or the minimum percentage of marks prescribed for the corresponding subjects specified above in the new scheme and in lieu of the prescribed percentage in the optional subject in the old scheme has obtained the minimum numbers of marks in Composite Maths. Under the new scheme or a pass in any one of the subjects for Government Technical Examination by the Lower Grade which need not necessarily be as corresponding subjects; or

(V)

If such certificate was obtained in pursuance of the revised pattern of school education introduced in 1966 in G.O. Ms. No. 1386, Education, dated the 21st July 1966, the certificate must show that the candidate has obtained at the public examination not less than 40% of marks in each of the Languages under Group A and 35% of marks in each of the subjects under Groups B and C:

Provided that in the case of a candidate belonging to the Scheduled Castes or Scheduled Tribes, it shall be sufficient if he has obtained not less than 35% marks, in each of the subjects under Groups A, B and C.

(b)

(i)

have obtained a completed European School Leaving Certificate or a completed Anglo-Indian School Leaving Certificate issued under the authority of the Government of Madras with either Tamil, Telugu, Malayalam, Kannada, Hindustani, or Hindi as his compulsory second language and secured at the European High School Examination or the Anglo Indian School Leaving Certificate-examination not less than the percentage of marks specified below in the subjects in Group 'A' and not less than 35% in each of subjects in Group 'B'

Group 'A'

English

40

Elementary Maths

35

A Language

30

2. Have passed the Anglo-Indian High School Examination under the New Scheme held from November 1962, or

(c)

Have passed the Matriculation Examination of any University or Institution recognised by the University Grants Commission for the purpose of its grant, or

(d)

Have obtained the Post Basic (HR) Certificate with not less than the following percentage of marks specified against each subjects:-

1. Regional Language

40% in each subjects.

2. English

35% in the case of Scheduled Castes &
Scheduled Tribes.

3. Maths

4. Social Studies

35% in any two subjects and 30% in the Third
subject.

5. General Science

Note. - The following shall be regarded as equivalent to the minimum general education qualification prescribed in the Schedule to the General Rules for the State and Subordinate Services:-

1. Indian Army Special Certificate of Education;

2. A pass in the Higher Education Test of the Royal Indian Navy;

3. A pass in the Anglo Vernacular School Leaving Certificate of Burma Examination.

3.

-A. A pass in the Burma High School Examination Final Examination.

4. A pass in the Post War School Leaving Certificate Examination of Burma provided that the candidate has obtained at the said examination the percentage of marks noted below against each subject.

1

2

Percentage

English

40

Maths

30

Two other subjects (other than Burmese) 35% each and that the candidate possesses an adequate knowledge of one of the regional languages of the State.

4. (A) A pass in the Pre-war Anglo-Vernacular School Leaving Certificate Examination of Burma, provided that the candidate has obtained in the said examination the percentage of marks noted below against each subject:-

1

2

Percentage

English

40

Maths

30

Two other subjects (other than Burmese) 35 each and that the candidate possess an adequate knowledge of one of the regional languages of the State of Madras.

Provided that items (4) and (4-A) shall with effect from the 30th November 1957 be deemed to have effect as if the words "and that the candidate possesses an adequate knowledge of one of the regional languages of the State of Tamil Nadu" had been omitted.

5. A pass in the Entrance Examination of Sreemathi Nathibai Damodhar Thackersay Indian Women's University Bombay;

6. A pass in the Matriculation Examination of the Rangoon University;

7. A pass in the English School Leaving Certificate Examination of the Travancore area under the revised syllabus introduced in 1949;

7.

(A)

A pass in the English School Leaving Certificate Examination (renamed S.S.L.C. Examination since 1952) of the Travancore area under the modified scheme introduced in 1951 in cases where candidates have obtained not less than: the following percentage of marks:-

1

2

English

40

Second Language

40

35% in the case of candidates belonging to any of the Scheduled Castes or Scheduled Tribes

Other Subjects

35

7.

(B)

A completed Secondary School-Leaving Certificate (X Std.) of the Kerala State held prior to the introduction of the New Scheme in 1964 with not less than the following percentage of marks in the various subjects at the Public Examination.

1

2

English

40

Per cent

Regional Language

40

35% in the case of candidates belonging to any of the Scheduled Castes or Scheduled Tribes

Other Subjects

35

(Excluding Hindi)

8. A pass in the pre-1949 English School Leaving Certificate Examination of the pre-integration Travancore State in cases where candidates have obtained not less than the following percentage of marks:

1

2

English

40

Per cent

Language

40

35% in the case of candidates belonging to any
of the Scheduled Castes or Scheduled Tribes

Elementary Maths

30

History and Geography

35

Elementary Science

35

9. A pass in the Secondary School Certificate Examination conducted by the Government of Bombay (under Revised Scheme 1951) provided that the percentage of marks obtained at the Examination in each subjects is the same or higher than the percentage of marks prescribed in the schedule for the corresponding subject in the S.S.L.C. Examination.

10. A pass in the Admission Examination of the Banaras Hindu University.

11. A pass in the Advanced Class (Indian Navy) Examination held in or before 1954.

12. A certificate granted by the East Bengal Secondary Education Board Dacca in any of the following 3 Examinations conducted by it:-

(i)

Matriculation Examination

(ii)

High Madras Examination

(iii)

School Final (Science Side) Examination.

13. A pass in the Vidyavinodini Examination of the Prayak Mahila Yidyapitha, Allahabad, provided the candidate has taken "Advanced English" as one of the optional subjects;

14. A completed Cochin Secondary School Leaving Certificate with not less than the following percentage of marks in the various subjects at the Public Examination

1

2

Percentage

English

40

35% in the case of candidates belonging to any
of the Scheduled Castes or Scheduled Tribes

Second Language

40

Elementary Maths

30

Outline of Modern History and History of England
and Geography

35

Elementary Science

30

one optional subject

30

15. A pass in the Oriental School Leaving Certificate Examination provided that the candidate has obtained the

percentage of marks noted below against each subjects:

1

2

Percentage

English

40

Modern Knowledge or another language

30

Social Studies

35

Main language

40

16. A pass in the Technical High School Certificate Examination conducted by the State Board of Technical Education and Training, Madras in one sitting.

Related AI tags, queries and research notes

Translation